KUDAKWASHE MUNYONGA

Versus

JENNIPHER INNES BROUGHTON
CLERK OF COURT, TREDGOLD

AND

MESSENGER OF COURT, GWERU

HIGH COURT OF ZIMBABWE
MUTEVEDZI AND NDHLOVU JJ
BULAWAYO, 17 June 2026 and 23 July 2026

Civil Appeal Judgment

Appellant in person
Ms Chakauya, for respondent

MUTEVEDZI J: This is an appeal against the judgment of the Magistrates' Court ("the court *a quo*") sitting at Bulawayo and delivered on 15 April 2026 under case number BYO CG322/25. In that judgment, the court *aquo* dismissed the appellant's application for condonation for the late filing of an application for rescission of a default judgment. When the matter came before us for hearing, we struck the appeal off the roll. We gave our reasons *extempore.* The appellant later requested that we furnish him with our fuller reasons. But clearly, nothing can be fuller than what we stated at that time. We assume therefore that the appellant simply wants us to explain our conclusion in more words than we did. Below, we do exactly that.

Factual Background

[1] On 8 November 2025, the court *aquo* granted default judgment against the appellant. It ordered him to pay the respondent the sum of US$22 500 in respect of stock supplies received. Subsequently, the appellant filed an application for rescission of the default judgment. That application was **dismissed** by the court *aquo*. In a relentless pursuit, the appellant once more returned to the court *aquo*. He filed an application for condonation for

the late filing of another application for rescission of the same default judgment. After hearing the matter, the court *aquo* dismissed the application for condonation with costs.

[2] Aggrieved by that decision, the appellant noted the present appeal. At the hearing of the appeal, our view was that the subsequent application for condonation for late filing of an application for recission of default judgment after the initial application had been dismissed was an exercise in futility.

[3] In the case of Priscilla *Siphiwe Dube* v *Maphepha Syndicate* HB O5-09, this Court held that: -

> "When a magistrate' court does what is not within its jurisdiction, the result of what it purports to do is void and it is a nullity in law with no force or effect. No benefit can be derived from it. It has been repeatedly stated that it is likely trying to build something on nothing and expect it to stand; it will collapse."

[4] Once the first application for rescission of judgment had been heard and dismissed, the matter became finalised before the court *aquo*. That court became *functus* in relation to the rescission of the default judgment. Put simply, the appellant could not through any means seek the rehearing of the reversal of the default judgment in the Magistrates Court. Put in another way, the proceedings could not thereafter be revived or reinstated. If the appellant was dissatisfied with the dismissal of the rescission application, his proper remedies lay in appealing against it or seeking its review. We struggled to understand what it was that the appellant moved the court aquo to condone him on. His view was that he had the right to reinstitute the application for rescission in the Magistrates Court. He was obviously wrong. It follows therefore that the appellant erroneously thought the court aquo could condone him for whatever infraction he imagined to have committed. The magistrate simply did not have the power to condone the appellant to refile an application which it had already **determined and dismissed** no matter what the reasons were.

[5] Accordingly, the subsequent application for condonation was therefore a nullity. The determination by the court aquo in that regard was equally a nullity. As a result, that incompetent and invalid determination was incapable of founding a valid appeal. Put differently, once the substantive rescission application had been disposed of, there remained no pending rescission proceedings capable of being regularized through

condonation. That is so, because in the words of KORSAH JA in *Muchakata* v *Netherburn Mine* 1996 (2) ZLR 153 (S), 157B-C:

> "If the order was void ab in initio it was void at all times and for all purposes. It does not matter when and by whom the issue of its validity is raised; nothing can depend on it. As Lord Denning MR so exquisitely put is in MacFoy v United Africa Co Ltd (1961) 3 All ER 1169 at 1172 I
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> > "If an act is void then it is in law a nullity. It is not only bad but incurably bad…. And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

[6] In the result, it was not possible for the appellant to appeal against a nullity. For that reason, we determined that there was no the appeal before us and directed like we did, that the appeal be struck off the roll.

MUTEVEDZI J……

NDHLOVU J …… I agree

Mhaka Attorneys, respondent's legal practitioners